COURSE TITLE	**INTELLECTUAL PROPERTY LAW**
COURSE CODE	**10FL1606**
COURSE CREDITS	**4**

Objective:

1 To acquaint the students with Intellectual Property Rights in the Indian context
2 It aims to give an overview to the student on the practical applicability of international conventions in the Indian scenario.
3 To make students understand the legal regime adopted in various forms of Intellectual property laws.

Course Outcomes: After completion of this course, student will be able to:

1 To exhibit memory on the basic concept of IP rights
2 To Compare product/process patents and relating rules.
3 To identify trademarks & geographical indications and their application.
4 To examine the provisions relating to the Copyright.
5 To appraise importance of industrial designs by interpreting judicial decisions.
6 To imagine the consequences of non-protection of trade secrets & key business concerns in commercializing intellectual property.

Pre-requisite of course:N/A

Teaching and Examination Scheme

Theory Hours	Tutorial Hours	Practical Hours	ESE	IA	CSE	Viva	Term Work
3	1	0	50	30	20	0	0

Contents : Unit	Topics	Contact Hours
1	**INTELLECTUAL PROPERTY RIGHTS: AN OVERVIEW** Difference Between Intellectual Property, Intellectual Property Rights & Intellectual Property Law, Types of IP: Trademarks, Copyright, Patent, Industrial Design, Trade secrets & GI Traditional Knowledge, Plant Varieties, Integrated Circuit Layout Design, Theories of IP (Jurisprudential aspects), International Conventions: Paris Convention 1883; Madrid Agreement, 1891 & Protocol, 1989; Berne Convention, 1886; PCT, 1970; TRIPS	5

DR. NONGTHOMBAM BANGKIM SINGH
Digitally signed by (Name of HOD)

DR. RHISHIKESH NARENDRA DAVE
Digitally signed by (Name of Dean/ Principal)

Contents : Unit	Topics	Contact Hours
2	**PATENTS** Concept of Patent, Product/Process Patents & Terminology, Duration of Patents, Elements of Patentability, Non- Patentable Subject Matter, Procedure for Filing of Patent Application, Procedure for Opposition Revocation of Patents Assignment and licensing of Patents, Compulsory Licensing, Patent Rights and Infringement, Covid Pandemic & Pharma Patenting	9
3	**TRADEMARKS & GEOGRAPHICAL INDICATIONS** Introduction & Historical Perspective, Definitions, Different Kinds of Marks, Registration of Trade Marks, Application for Registration, Objection & Opposition to Registration, Grounds for Refusal to Registration, Infringement of Trade Marks, Assignment& Transmission, Offences Penalties, Meaning and Nature of Geographical Indications, Application for Registration, Conditions & Procedure for Registration, Offences and Penalties	9
4	**COPYRIGHT** Introduction, Meaning of Copyright, Works in which Copyright Subsists (Section 13), Idea-Expression Dichotomy, Test of Originality (Doctrine of Sweat of the Brow, Modicum of creativity & Indian perspective of Skill & Judgement Test), Author & Ownership of Copyright, Economic and Neighbouring rights, Term of Copyright, Copyright Societies & Copyright Board, Assignment and Licensing of Copyright, Registration of Copyright, infringement of Copyright, Fair-use Doctrine (Section 52- Exceptions), Remedies against Infringement of Copyright	9
5	**INDUSTRIAL DESIGNS** Concept of Design, What is a Design, Registrable Design, Novelty & Originality, Registration of Design, Procedure for Registration, Term Duration of Protection, Copyright under Design, Piracy and Penalties, Assignment of Designs	9
6	**PROTECTION OF TRADE SECRETS & KEY BUSINESS CONCERNS IN COMMERCIALISING INTELLECTUAL PROPERTY** Introduction, Legislation Governing Trade Secrets, Protection under TRIPS Agreement, What Causes a Business to Lose Trade Secret Protection, Competition and Confidentiality Issues, Care & Maintenance of Confidential Information, Employee Confidentiality, Intellectual Property Issues in the Sale of Business, , Assignment of Intellectual Property Rights, Technology Transfer Agreements, Legal Auditing of Intellectual Property, Due Diligence of Intellectual Property Rights	4
Total Hours		**45**

DR. NONGTHOMBAM BANGKIM SINGH
Digitally signed by (Name of HOD)

DR. RHISHIKESH NARENDRA DAVE
Digitally signed by (Name of Dean/ Principal)

Suggested List of Experiments:

Contents : Unit	Topics	Contact Hours
1	**Issues related to Intellectual Property Law** Issues related to Intellectual Property Law	15
Total Hours		**15**

Textbook :

1 Intellectual Property Law, P. Narayanan, Eastern Law House, 2020

References:

1 Law relating to Intellectual Property Rights, Law relating to Intellectual Property Rights, Dr. M.K Bhandari, EBC, 2019

Suggested Theory Distribution:

The suggested theory distribution as per Bloom's taxonomy is as follows. This distribution serves as guidelines for teachers and students to achieve effective teaching-learning process

Distribution of Theory for course delivery					
Remember / Knowledge	**Understand**	**Apply**	**Analyze**	**Evaluate**	**Higher order Thinking / Creative**
10.00	10.00	30.00	10.00	20.00	20.00

DR. NONGTHOMBAM BANGKIM SINGH
Digitally signed by (Name of HOD)

DR. RHISHIKESH NARENDRA DAVE
Digitally signed by (Name of Dean/ Principal)